

21STCV22100 21STCV22100

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-16

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C07%2F16%2F2026

Source SHA-256: bebddf3fd893698b0dfcf36fb9bb73b5a4baa8b6f9c0fce014f39ae7058495d4

Case Number: 21STCV22100 Hearing Date: July 16, 2026 Dept: 309

Superior

Court of California

County of Los Angeles

DEPARTMENT

309

TENTATIVE

RULING

JOHNNIE

MCGEE

vs.

COUNTY

OF LOS ANGELES

Case No.: 21STCV22100

Hearing

Date: July 16, 2026

Plaintiff's

motion for unpaid overtime wages for July 3, 2021 is DENIED.

On

12/15/2022, Plaintiff Johnnie McGee (Plaintiff) filed suit against Defendant County of Los Angeles (County), alleging: (1) discrimination; (2) retaliation; and (3) failure to prevent discrimination, harassment, and retaliation.

Plaintiff

moves for unpaid overtime wages from July 3, 2021.

Discussion

Plaintiff

seeks overtime wages from July 3, 2021.

The evidence

at trial demonstrated:

1.

The County neither requested nor permitted the work by the Plaintiff.

2.

The County did not assign or approve the work to be performed by the Plaintiff.

3.

The Plaintiff was acting outside the scope of County employment during the claimed hours.

4.

The County could not have legally assigned Plaintiff to perform the work.

5.

The alleged overtime was not performed for the County's benefit.

6.

The work was performed for another governmental entity, making that entity— not the County—the beneficiary of the services.

(See Opp.,
2:1-4:5.)

The fact that

Plaintiff affirmatively requested the assignment but received no response is particularly important. It undercuts any claim that he reasonably believed he had been authorized. Silence is not authorization, especially where a formal assignment process existed, qualified personnel was actually assigned, and Plaintiff knew he lacked the required qualifications. Accordingly, the Court finds no evidentiary basis to believe he had been authorized to work July 3, 2021.

Moreover, the

Court finds that Labor Code claims predicated upon Sections 219, 510, and 1194 cannot be maintained against the County of Los Angeles because none of those statutes expressly apply to counties or other public entities.

Under

California Law, "unless Labor Code provisions are specially made applicable to public employers, they only apply to employers in the private sector." (Johnson v. Arvin-Edison Water Storage Dist. (2009) 174 Cal.App.4th 729, 733.)

Labor Code §

220(b) expressly provides that sections 215 through 219 do not apply to employees directly employed by any county, incorporated city, town, or other municipal corporation.

Labor Code

section 510 establishes California overtime requirements but contains no language expressly applying its provisions to counties or public employers. Labor Code section 1194 provides a private right of action (as a remedy) for unpaid wages and overtime but contains no express language applying it to public employers.

Indeed, the

California Court of Appeals has already specifically held that Labor Code sections 510 and 1194 do not apply to public entities. (Allen v. San Diego Convention Center Corp. (2002) 86 Cal.App. 5th 589, 600-601 [demurrer sustained in favor of Defendant based, in part, on allegations of violation of Section 510 and 1194, as Defendant was a public entity, which was upheld on

Appeal].)

Based on the foregoing, Plaintiff's request for unpaid overtime wages from July 3, 2021 is denied.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.